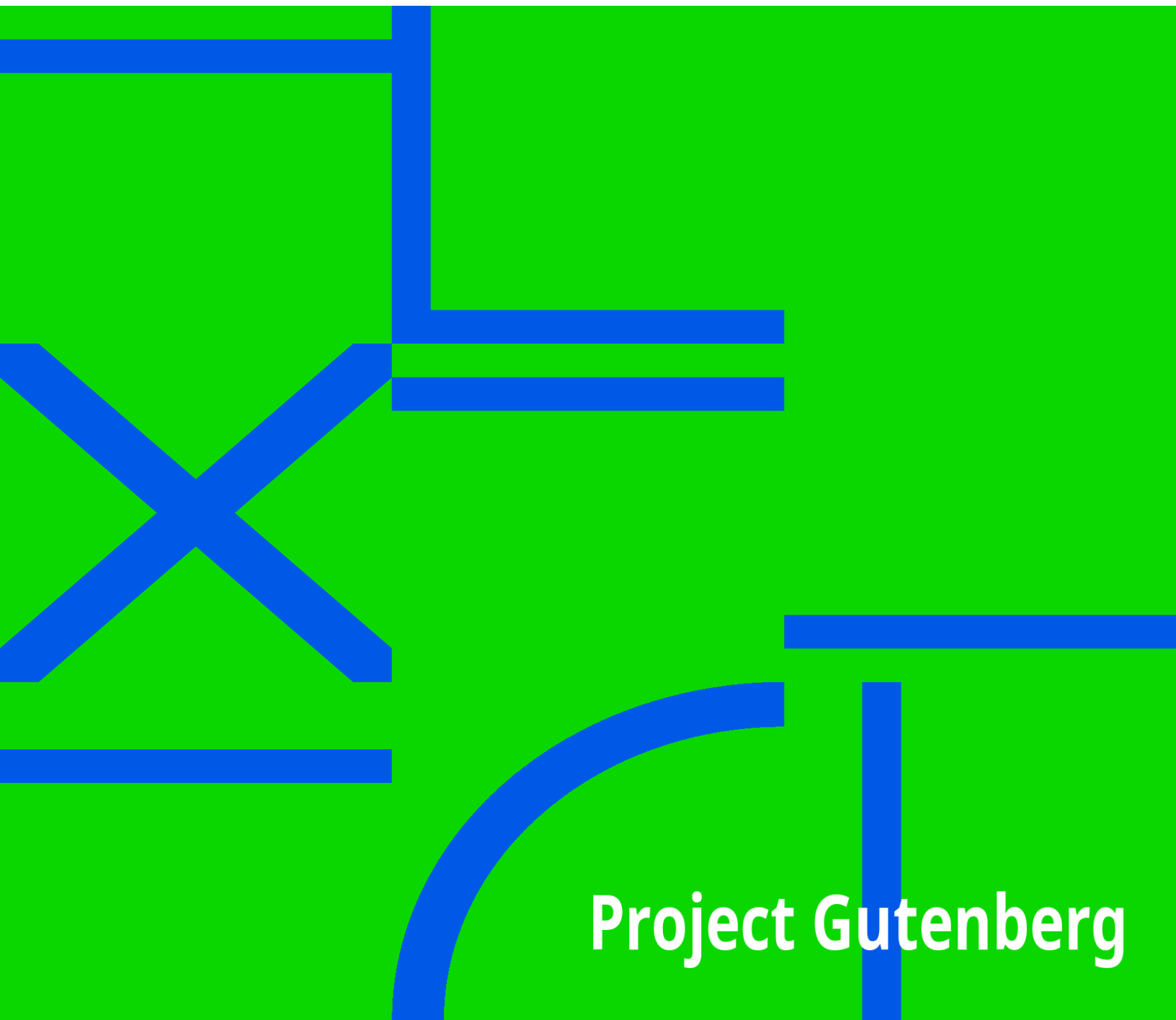


El Verdugo

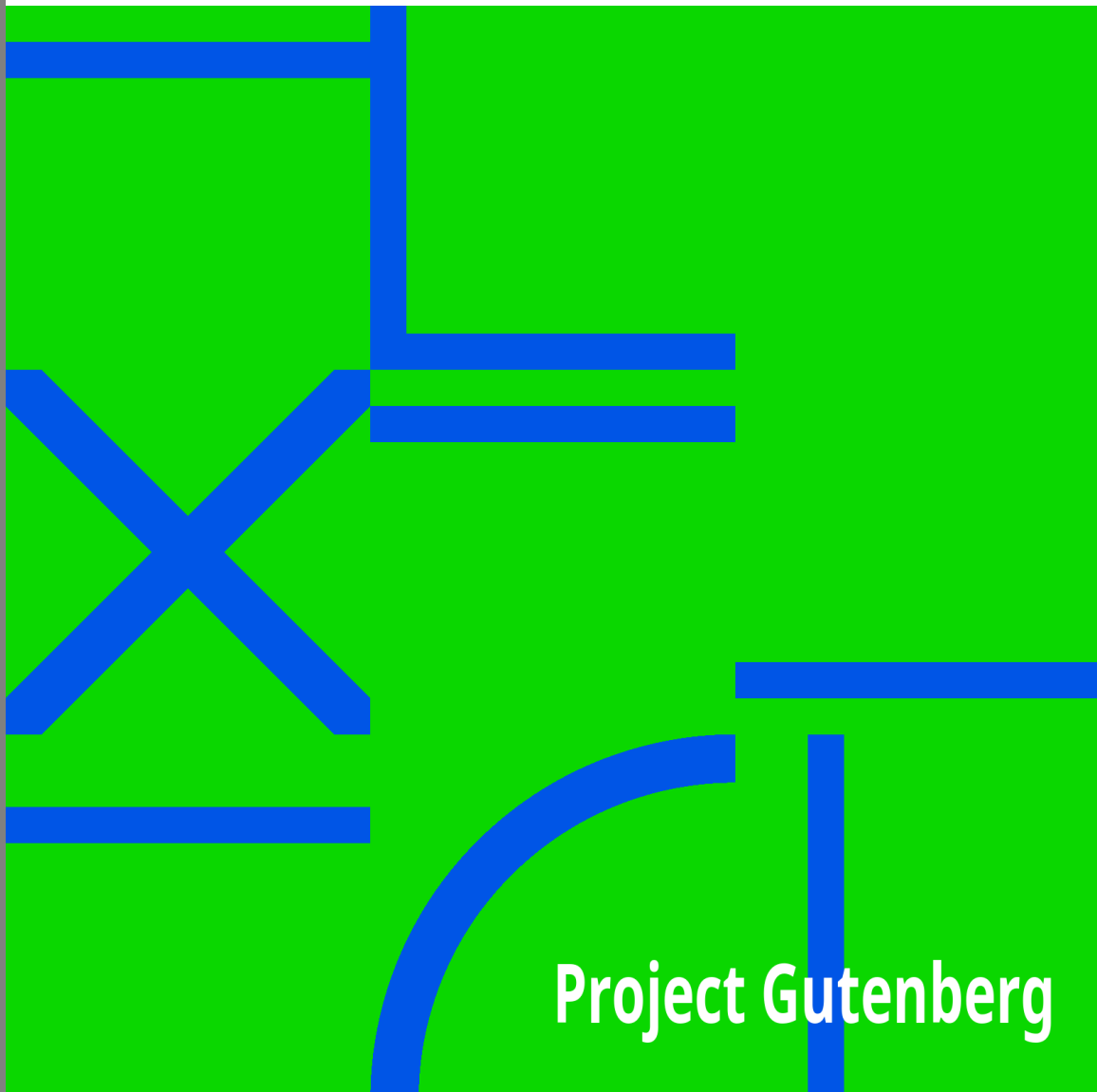
Honoré de Balzac



Project Gutenberg

El Verdugo

Honoré de Balzac



Project Gutenberg

The Project Gutenberg eBook of El Verdugo

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: El Verdugo

Author: Honoré de Balzac

Translator: Katharine Prescott Wormeley

Release date: November 2, 2005 [eBook #1425]

Most recently updated: October 29, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/1425

Credits: Produced by John Bickers, and Dagny, and David Widger

*** START OF THE PROJECT GUTENBERG EBOOK EL VERDUGO

EL VERDUGO

By Honore De Balzac

Translated by Katharine Prescott Wormeley

DEDICATION

To Martinez de la Rosa.

EL VERDUGO

The clock of the little town of Menda had just struck midnight. At that moment a young French officer, leaning on the parapet of a long terrace which bordered the gardens of the chateau de Menda, seemed buried in thoughts that were deeper than comported with the light-hearted carelessness of military life; though it must be said that never were hour, scene, or night more propitious for meditation. The beautiful sky of Spain spread its dome of azure above his head. The scintillation of the stars and

the soft light of the moon illumined the delightful valley that lay at his feet. Resting partly against an orange-tree in bloom, the young major could see, three hundred feet below him, the town of Menda, at the base of the rock on which the castle is built. Turning his head, he looked down upon the sea, the sparkling waters of which encircled the landscape with a sheet of silver.

The chateau was illuminated. The joyous uproar of a ball, the sounds of an orchestra, the laughter of the dancers came to him, mingling with the distant murmur of the waves. The coolness of the night gave fresh energy to his body, that was tired with the heat of the day. Besides which, the gardens were planted with trees so balmy and flowers so sweet, that the young man felt as if plunged in a perfumed bath.

The chateau de Menda belonged to a grandee of Spain, who was at this time living there with his family. During the whole evening, the eldest daughter had looked at the young officer with an interest expressing extreme sadness, and such implied compassion on the part of a Spaniard might well have caused the reverie of the Frenchman. Clara was beautiful; and though she had three brothers and one sister, the wealth of the Marquis de Leganes seemed sufficient to justify Victor Marchand in believing that the young lady would be richly dowered. But could he dare to believe that the daughter of the proudest noble in Spain would be given to the son of a Parisian grocer? Besides, Frenchmen were hated. The marquis having been suspected by General G—t—r, who governed the province, of preparing an insurrection in favor of Ferdinand VII., the battalion commanded by Victor Marchand was quartered in the little town of Menda, to hold in check the neighboring districts, which were under the control of the Marquis de Leganes.

A recent despatch from Marechal Ney made it seem probable that the English would soon land a force upon the coast; and he mentioned the marquis as the man who was believed to be in communication with the cabinet of London. Thus, in spite of the cordial welcome which that Spaniard had given to Victor Marchand and his soldiers, the young officer held himself perpetually on his guard. As he came from the ballroom to the terrace, intending to cast his eye upon the state of the town and the outlying districts confided to his care, he asked himself how he ought to interpret the good will which the marquis never failed to show him, and whether the fears of his general were warranted by the apparent tranquillity of the

region. But no sooner had he reached the terrace than these thoughts were driven from his mind by a sense of prudence, and also by natural curiosity.

He saw in the town a great number of lights. Although it was the feast of Saint James, he had, that very morning, ordered that all lights should be put out at the hour prescribed in the army regulations, those of the chateau alone excepted. He saw, it is true, the bayonets of his soldiers gleaming here and there at their appointed posts; but the silence was solemn, and nothing indicated that the Spaniards were disregarding his orders in the intoxication of a fete. Endeavoring to explain to himself this culpable and deliberate infraction of rules on the part of the inhabitants, it struck him as the more incomprehensible because he had left a number of officers in charge of patrols who were to make their rounds during the night, and enforce the regulations.

With the impetuosity of youth, he was about to spring through an opening in the terrace wall, and descend by the rocks more rapidly than by the usual road to a little outpost which he had placed at the entrance of the town, on the side toward the chateau, when a slight noise arrested him. He fancied he heard the light step of a woman on the gravelled path behind him. He turned his head and saw no one, but his eyes were caught by an extraordinary light upon the ocean. Suddenly he beheld a sight so alarming that he stood for a moment motionless with surprise, fancying that his senses were mistaken. The white rays of the moonlight enabled him to distinguish sails at some distance. He tried to convince himself that this vision was an optical delusion caused by the caprices of the waves and the moon. At that moment, a hoarse voice uttered his name. He looked toward the opening in the wall, and saw the head of the orderly who had accompanied him to the chateau rising cautiously through it.

"Is it you, commander?"

"Yes. What is it?" replied the young man, in a low voice, a sort of presentiment warning him to act mysteriously.

"Those rascals are squirming like worms," said the man; "and I have come, if you please, to tell you my little observations."

"Speak out."

"I have just followed from the chateau a man with a lantern who is coming this way. A lantern is mightily suspicious! I don't believe that Christian has any call to go and light the church tapers at this time of night.

They want to murder us! said I to myself, so I followed his heels; and I've discovered, commander, close by here, on a pile of rock, a great heap of fagots—he's after lighting a beacon of some kind up here, I'll be bound—"

A terrible cry echoing suddenly through the town stopped the soldier's speech. A brilliant light illuminated the young officer. The poor orderly was shot in the head and fell. A fire of straw and dry wood blazed up like a conflagration not thirty feet distant from the young commander. The music and the laughter ceased in the ballroom. The silence of death, broken only by moans, succeeded to the joyous sounds of a festival. A single cannon-shot echoed along the plain of the ocean.

A cold sweat rolled from the officer's brow. He wore no sword. He was confident that his soldiers were murdered, and that the English were about to disembark. He saw himself dishonored if he lived, summoned before a council of war to explain his want of vigilance; then he measured with his eye the depths of the descent, and was springing towards it when Clara's hand seized his.

"Fly!" she said; "my brothers are following me to kill you. Your soldiers are killed. Escape yourself. At the foot of the rock, over there, see! you will find Juanito's barb—Go, go!"

She pushed him; but the stupefied young man looked at her, motionless, for a moment. Then, obeying the instinct of self-preservation which never abandons any man, even the strongest, he sprang through the park in the direction indicated, running among the rocks where goats alone had hitherto made their way. He heard Clara calling to her brothers to pursue him; he heard the steps of his murderers; he heard the balls of several muskets whistling about his ears; but he reached the valley, found the horse, mounted him, and disappeared with the rapidity of an arrow.

A few hours later the young officer reached the headquarters of General G—t—r, whom he found at dinner with his staff.

"I bring you my head!" cried the commander of the lost battalion as he entered, pale and overcome.

He sat down and related the horrible occurrence. An awful silence followed his tale.

"I think you were more unfortunate than criminal," replied the terrible general, when at last he spoke. "You are not responsible for the crime of

those Spaniards; and, unless the marshal should think otherwise, I absolve you."

These words gave but a feeble consolation to the unhappy officer.

"But when the emperor hears of it!" he cried.

"He will want to have you shot," said the general; "but we will see about that. Now," he added in a stern tone, "not another word of this, except to turn it into a vengeance which shall impress with salutary terror a people who make war like savages."

An hour later a whole regiment, a detachment of cavalry, and a battery of artillery were on their way to Menda. The general and Victor marched at the head of the column. The soldiers, informed of the massacre of their comrades, were possessed by fury. The distance which separated the town of Menda from general headquarters, was marched with marvellous rapidity. On the way, the general found all the villages under arms. Each of the wretched hamlets was surrounded, and the inhabitants decimated.

By one of those fatalities which are inexplicable, the British ships lay to without advancing. It was known later that these vessels carried the artillery, and had outsailed the rest of the transports. Thus the town of Menda, deprived of the support it expected, and which the appearance of the British fleet in the offing had led the inhabitants to suppose was at hand, was surrounded by French troops almost without a blow being struck. The people of the town, seized with terror, offered to surrender at discretion. With a spirit of devotion not rare in the Peninsula, the slayers of the French soldiery, fearing, from the cruelty of their commander, that Menda would be given to the flames, and the whole population put to the sword, proposed to the general to denounce themselves. He accepted their offer, making a condition that the inhabitants of the chateau, from the marquis to the lowest valet, should be delivered into his hands. This condition being agreed to, the general proceeded to pardon the rest of the population, and to prevent his soldiers from pillaging the town or setting fire to it. An enormous tribute was levied, and the wealthiest inhabitants held prisoner to secure payment of it, which payment was to be made within twenty-four hours.

The general took all precautions necessary for the safety of his troops, and provided for the defence of the region from outside attack, refusing to allow his soldiers to be billeted in the houses. After putting them in camp, he went up to the chateau and took possession of it. The members of the

Leganes family and their servants were bound and kept under guard in the great hall where the ball had taken place. The windows of this room commanded the terrace which overhung the town. Headquarters were established in one of the galleries, where the general held, in the first place, a council as to the measures that should be taken to prevent the landing of the British. After sending an aide-de-camp to Marechal Ney, and having ordered batteries to certain points along the shore, the general and his staff turned their attention to the prisoners. Two hundred Spaniards who had delivered themselves up were immediately shot. After this military execution, the general ordered as many gibbets planted on the terrace as there were members of the family of Leganes, and he sent for the executioner of the town.

Victor Marchand took advantage of the hour before dinner, to go and see the prisoners. Before long he returned to the general.

"I have come," he said in a voice full of feeling, "to ask for mercy."

"You!" said the general, in a tone of bitter irony.

"Alas!" replied Victor, "it is only a sad mercy. The marquis, who has seen those gibbets set up, hopes that you will change that mode of execution. He asks you to behead his family, as befits nobility."

"So be it," replied the general.

"They also ask for religious assistance, and to be released from their bonds; they promise in return to make no attempt to escape."

"I consent," said the general; "but I make you responsible for them."

"The marquis offers you his whole fortune, if you will consent to pardon one of his sons."

"Really!" exclaimed the general. "His property belongs already to King Joseph."

He stopped. A thought, a contemptuous thought, wrinkled his brow, and he said presently,—

"I will surpass his wishes. I comprehend the importance of his last request. Well, he shall buy the continuance of his name and lineage, but Spain shall forever connect with it the memory of his treachery and his punishment. I will give life and his whole fortune to whichever of his sons will perform the office of executioner on the rest. Go; not another word to me on the subject."

Dinner was served. The officers satisfied an appetite sharpened by exertion. A single one of them, Victor Marchand, was not at the feast. After hesitating long, he returned to the hall where the proud family of Leganes were prisoners, casting a mournful look on the scene now presented in that apartment where, only two nights before, he had seen the heads of the two young girls and the three young men turning giddily in the waltz. He shuddered as he thought how soon they would fall, struck off by the sabre of the executioner.

Bound in their gilded chairs, the father and mother, the three sons, and the two daughters, sat rigid in a state of complete immobility. Eight servants stood near them, their arms bound behind their backs. These fifteen persons looked at one another gravely, their eyes scarcely betraying the sentiments that filled their souls. The sentinels, also motionless, watched them, but respected the sorrow of those cruel enemies.

An expression of inquiry came upon the faces of all when Victor appeared. He gave the order to unbind the prisoners, and went himself to unfasten the cords that held Clara in her chair. She smiled sadly. The officer could not help touching softly the arms of the young girl as he looked with sad admiration at her beautiful hair and her supple figure. She was a true Spaniard, having the Spanish complexion, the Spanish eyes with their curved lashes, and their large pupils blacker than a raven's wing.

"Have you succeeded?" she said, with one of those funereal smiles in which something of girlhood lingers.

Victor could not keep himself from groaning. He looked in turn at the three brothers, and then at Clara. One brother, the eldest, was thirty years of age. Though small and somewhat ill-made, with an air that was haughty and disdainful, he was not lacking in a certain nobility of manner, and he seemed to have something of that delicacy of feeling which made the Spanish chivalry of other days so famous. He was named Juanito. The second son, Felipe, was about twenty years of age; he resembled Clara. The youngest was eight. A painter would have seen in the features of Manuelo a little of that Roman constancy that David has given to children in his republican pages. The head of the old marquis, covered with flowing white hair, seemed to have escaped from a picture of Murillo. As he looked at them, the young officer shook his head, despairing that any one of those

four beings would accept the dreadful bargain of the general. Nevertheless, he found courage to reveal it to Clara.

The girl shuddered for a moment; then she recovered her calmness, and went to her father, kneeling at his feet.

"Oh!" she said to him, "make Juanito swear that he will obey, faithfully, the orders that you will give him, and our wishes will be fulfilled."

The marquise quivered with hope. But when, leaning against her husband, she heard the horrible confidence that Clara now made to him, the mother fainted. Juanito, on hearing the offer, bounded like a lion in his cage.

Victor took upon himself to send the guard away, after obtaining from the marquis a promise of absolute submission. The servants were delivered to the executioner, who hanged them.

When the family were alone, with no one but Victor to watch them, the old father rose.

"Juanito!" he said.

Juanito answered only with a motion of his head that signified refusal, falling back into his chair, and looking at his parents with dry and awful eyes. Clara went up to him with a cheerful air and sat upon his knee.

"Dear Juanito," she said, passing her arm around his neck and kissing his eyelids, "if you knew how sweet death would seem to me if given by you! Think! I should be spared the odious touch of an executioner. You would save me from all the woes that await me—and, oh! dear Juanito! you would not have me belong to any one—therefore—"

Her velvet eyes cast gleams of fire at Victor, as if to rouse in the heart of Juanito his hatred of the French.

"Have courage," said his brother Felipe; "otherwise our race, our almost royal race, must die extinct."

Suddenly Clara rose, the group that had formed about Juanito separated, and the son, rebellious with good reason, saw before him his old father standing erect, who said in solemn tones,—

"Juanito, I command you to obey."

The young count remained immovable. Then his father knelt at his feet. Involuntarily Clara, Felipe, and Manuelo imitated his action. They all

stretched out their hands to him, who was to save the family from extinction, and each seemed to echo the words of the father.

"My son, can it be that you would fail in Spanish energy and true feeling? Will you leave me longer on my knees? Why do you consider *your* life, *your* sufferings only? Is this my son?" he added, turning to his wife.

"He consents!" cried the mother, in despair, seeing a motion of Juanito's eyelids, the meaning of which was known to her alone.

Mariquita, the second daughter, was on her knees pressing her mother in her feeble arms, and as she wept hot tears her little brother scolded her.

At this moment the chaplain of the chateau entered the hall; the family instantly surrounded him and led him to Juanito. Victor, unable to endure the scene any longer, made a sign to Clara, and went away, determined to make one more attempt upon the general.

He found him in fine good-humour, in the midst of a banquet, drinking with his officers, who were growing hilarious.

An hour later, one hundred of the leading inhabitants of Menda assembled on the terrace, according to the orders of the general, to witness the execution of the Leganes family. A detachment of soldiers were posted to restrain the Spaniards, stationed beneath the gallows on which the servants had been hanged. The heads of the burghers almost touched the feet of these martyrs. Thirty feet from this group was a block, and on it glittered a scimitar. An executioner was present in case Juanito refused his obedience at the last moment.

Soon the Spaniards heard, in the midst of the deepest silence, the steps of many persons, the measured sound of the march of soldiers, and the slight rattle of their accoutrements. These noises mingled with the gay laughter of the officers, as a few nights earlier the dances of a ball had served to mask the preparations for a bloody treachery. All eyes turned to the chateau and saw the noble family advancing with inconceivable composure. Their faces were serene and calm.

One member alone, pale, undone, leaned upon the priest, who spent his powers of religious consolation upon this man,—the only one who was to live. The executioner knew, as did all present, that Juanito had agreed to accept his place for that one day. The old marquis and his wife, Clara, Mariquita, and the two younger brothers walked forward and knelt down a

few steps distant from the fatal block. Juanito was led forward by the priest. When he reached the place the executioner touched him on the arm and gave him, probably, a few instructions. The confessor, meantime, turned the victims so that they might not see the fatal blows. But, like true Spaniards, they stood erect without faltering.

Clara was the first to come forward.

"Juanito," she said, "have pity on my want of courage; begin with me."

At this instant the hurried steps of a man were heard, and Victor Marchand appeared on the terrace. Clara was already on her knees, her white neck bared for the scimitar. The officer turned pale, but he ran with all his might.

"The general grants your life if you will marry me," he said to her in a low voice.

The Spanish girl cast upon the officer a look of pride and contempt.

"Go on, Juanito!" she said, in a deep voice, and her head rolled at Victor's feet.

The Marquise de Leganes made one convulsive movement as she heard that sound; it was the only sign she gave of sorrow.

"Am I placed right this way, my good Juanito?" asked the little Manuella of his brother.

"Ah! you are weeping, Mariquita!" said Juanito to his sister.

"Yes," she said, "I think of you, my poor Juanito; how lonely you will be without us."

Soon the grand figure of the marquis came forward. He looked at the blood of his children; he turned to the mute and motionless spectators, and said in a strong voice, stretching his hands toward Juanito,—

"Spaniards! I give my son my fatherly blessing! Now, *Marquis*, strike, without fear—you are without reproach."

But when Juanito saw his mother approach him, supported by the priest, he cried out: "She bore me!"

A cry of horror broke from all present. The noise of the feast and the jovial laughter of the officers ceased at that terrible clamor. The marquise comprehended that Juanito's courage was exhausted, and springing with one

bound over the parapet, she was dashed to pieces on the rocks below. A sound of admiration rose. Juanito had fallen senseless.

"General," said an officer, who was half drunk, "Marchand has just told me the particulars of that execution down there. I will bet you never ordered it."

"Do you forget, messieurs," cried General G—t—r, "that five hundred French families are plunged in affliction, and that we are now in Spain? Do you wish to leave our bones in its soil?"

After that allocution, no one, not even a sub-lieutenant, had the courage to empty his glass.

In spite of the respect with which he is surrounded, in spite of the title El Verdugo (the executioner) which the King of Spain bestowed as a title of nobility on the Marquis de Leganes, he is a prey to sorrow; he lives in solitude, and is seldom seen. Overwhelmed with the burden of his noble crime, he seems to await with impatience the birth of a second son, which will give him the right to rejoin the Shades who ceaselessly accompany him.

*** END OF THE PROJECT GUTENBERG EBOOK EL VERDUGO ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.